

Superior Court of California County of Santa Clara

191 North First Street
San José, California 95113
(408) 882-2700

LISA HERRICK
Assistant Executive Officer and General Counsel



June 17, 2024

Via Email

Constantine Mars

Re: Department 79 – Remote Proceedings and Email Communications

Dear Mr. Mars:

The Court Executive Office has been informed that you have violated [California Rules of Court, rule 1.150](#), [Local Rules General Court and Administration, rule 2](#), [Local Rules General Court and Administration, rule 9](#) and [Santa Clara County Superior Court Standing Order re Use of Recording Devices](#) by recording and posting Court proceedings.

In addition to California Rule of Court 1.150, General Court and Administration Local Rule 2, General Court and Administration Local Rule 9 and the Standing Order re Use of Recording Devices, at the beginning of every calendar in Department 79 all participants are advised that it is a violation of state and local rules to record or post proceedings. However, you have recorded and posted Court proceedings on your YouTube page in violation of the rules and order listed above. The recordings further reflect that you have been disruptive in Court proceedings in violation of General Court and Administration Local Rule 9, such that Judge Flint removed you from the proceeding before her.

Moreover, you have sent dozens of threatening, profane and disrespectful emails to the Court, disrupting Court business. The purpose of department email is to send courtesy copies of pleadings. Instead, you have used email repeatedly to litigate your case, copying every department in the Family Division, Presiding Judge Beth McGowen, and various other email addresses such as the Self-Help Center and ADA Coordinator. Your emails are disrespectful to the Court by referring to Judge Lowney by his first name and including profanity. Your emails make unfounded and unsupported allegations against Judges Flint, Lowney and Towery. Use of email to seek recusal of Judge Lowney and opposing counsel is improper. Use of email to request continuances is improper. Finally, it is

unacceptable to threaten to harm individuals at the Court. Your emails violate the policy and intent of allowing email access and are not the appropriate method to address the topics that you include in your communications.

To the extent you are dissatisfied with official Court rulings in a case you have pending before this Court, you may wish to consult an attorney. The Court Executive Office cannot provide legal advice or information about legal remedies that may be available to you.

To the extent the emails reflect complaints about a case or cases pending in this Court, the staff who manage the Departmental email are not authorized to intervene in a case on behalf of a party or discuss decisions or rulings in the case with you.

To the extent your emails include your arguments regarding the matters of the case, they are inappropriate and non-productive. Emails to the Court are not filed into the court file nor will they be provided to the judicial officers hearing your case.

You must immediately cease and desist sending emails. If you continue to send inappropriate and non-productive emails, the Court will take further action, including considering seeking a restraining order.

Thank you for your attention to these matters.

A handwritten signature in blue ink, appearing to read "Lisa Herrick".

LISA HERRICK